Georgia AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Leveraging AI in the K-12 Setting (Georgia Department of Education, January 2025)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text.

Ethical & Responsible Use of AI (excerpt)

Source: page 3

Educators, administrators, and students must:

- Respect privacy and ensure data protection in all AI endeavors.

Potential Risks of AI in Education (excerpt)

Source: page 4

Transparency is also vital; stakeholders should be informed about how AI systems make decisions and what data they use. Protecting the privacy of students and staff is another key ethical consideration, requiring robust data protection measures. See Safeguarding Privacy: Protecting Personally Identifiable Information in AI Systems.

Safeguarding Privacy: Protecting Personally Identifiable Information in AI Systems

Source: page 5

To protect Personally Identifiable Information (PII), the following practices must be adhered to:

- Never input PII, such as social security numbers, home addresses, health information, academic information, employee performance, or other sensitive data into AI systems.
- Utilize anonymized or aggregated data (utilizing a locally determined n size) whenever possible so specific students and staff cannot be identified.
- Educate all users about the risks and responsibilities of handling PII and integrate this into annual professional learning requirements.

Protecting student and staff privacy is a top priority. AI systems can process vast amounts of data, and it is essential to ensure that this data does not include sensitive personal information. Schools should implement strict data handling policies and provide training to all staff on data privacy best practices.

Key Federal Statutes and Regulations

Children's Online Privacy Protection Rule (COPPA):

- 47 USC §231
- 16 CFR Part 312

Family Educational Rights and Privacy Act (FERPA):

- 20 USC §1232g
- 34 CFR Part 99

Privacy Act of 1974:

- 5 USC §552a
- 22 CFR Part 1101

Protection of Pupil Rights Amendment (PPRA):

- 20 USC §1232h
- 34 CFR Part 98

Section 504: Rehabilitation Act applies to both physical and digital environments. Schools must ensure that their digital content and technologies are accessible to students with disabilities.

IDEA (Individuals with Disabilities Education Act): AI must not be implemented in a way that denies disabled students equal access to education opportunities.

District Self-check: Privacy Considerations

Source: page 6

- How have AI and PII best practices been integrated into annual student privacy professional learning for all … educators and staff?
- Are all district staff trained on the importance of protecting personal and private information when interacting with AI systems?
- Is there a monitoring process to ensure compliance with data privacy practices and federal regulations?

Developing and Adopting AI Policies (excerpt)

Source: page 7

Ensure policies align with district goals and policies, covering ethical use, data privacy, grading, code of conduct, and acceptable use.

Having Formal Agreements with AI Systems and Tools

Source: page 9

Districts and schools should establish formal agreements with AI vendors to protect the school district, staff, and students, which should include:

- Clear terms of use and service-level agreements.
- Data privacy and security commitments from the vendor.
- Regular audits and compliance checks.

Formal agreements with AI vendors are essential to ensure that AI tools are used responsibly and effectively. These agreements should outline the expectations and responsibilities of both parties, including data use and privacy as well as security measures. Regular audits and compliance checks can help ensure that vendors adhere to these agreements and that any issues are promptly reported and addressed.

TrustEd Apps is a catalog of applications and software vetted for use. Each application in the catalog has been researched and validated to ensure security and data privacy. The TrustEd Apps

data privacy rubric examines four key areas: data collected, security, third-party sharing, and advertising

Evaluation Process Rubric (excerpt)

Source: page 10

Implementing a structured process for evaluating and adopting AI tools involves considering various factors to ensure their educational value and privacy implications.

Data Privacy Compliance with privacy laws and regulations, data encryption, anonymization practices.

Age restrictions Evaluate age requirements for utilization to ensure alignment with implementation.

Importance of AI Professional Learning for Educators (excerpt)

Source: page 11

- Ethical considerations and data privacy.

Ethical considerations and data privacy are critical topics that need to be addressed.